SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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OPEH LLC,

Plaintiff,

-against-

MICHAEL E. BLEICH and
ALEXIS K. BLEICH,

Defendants.

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Index No.

NOTICE OF MOTION FOR SUMMARY JUDGMENT IN LIEU OF COMPLAINT

PLEASE TAKE NOTICE that upon the annexed affidavit of Aaron Sosnick, sworn to on September 26, 2018, with exhibits annexed thereto, and the accompanying Memorandum of Law, dated September 24, 2018, Plaintiff OPEH LLC will move this Court on November 20, 2018, 2018, at 9:30 A.M., or as soon thereafter as counsel may be heard, in Room 130, 60 Centre Street, New York, New York, 10007, for an order, pursuant to CPLR §3213, granting Plaintiff OPEH LLC summary judgment in lieu of complaint in the sum of $2,233,007, together with interest accruing from September 17, 2018 until paid, at the agreed upon rate of 15% *per annum* ($930.42 *per diem*), and the accrued, unpaid interest incurred to date in the amount $155,070, against Defendants Michael E. Bleich and Alexis K. Bleich, based upon a promissory note dated January 11, 2018; executed by Defendants Michael E. Bleich and Alexis K. Bleich, an instrument for the payment of money only, a true copy of which is submitted herewith; and granting Plaintiff OPEH LLC reasonable costs of collection including, without limitation, reasonable attorneys' fees, and the costs and disbursements of this action, together with such other and further relief as the Court deems just and proper.

PLEASE TAKE FURTHER NOTICE that answering papers, if any, must be served on the undersigned so that they are received no later than seven (7) days before the return date.

Dated: New York, New York
September 27, 2018

TARTER KRINSKY & DROGIN LLP
Attorneys for Plaintiff

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